Vijayan, however, kept with him the tickets of Mariam Rasheeda unauthorisedly and on 20 October 1994 arrested her at 4:15pm and lodged a complaint with Vanchiyoor Police. This formed the basis of the case against her under the Foreigners Act. The seizure of the tickets was not shown even after the registration of the case and, thus, he caused obstruction to Mariam Rasheeda's return to Male on 17 October 1994.

Vijayan was entrusted with the police custody of Mariam Rasheeda by the magistrate, but he surrendered her custody to IB officials in contravention of the court orders and caused the IB officials alone interrogating and torturing Mariam Rasheeda. Vijayan has recorded in his several case diaries that the IB officials asked him to get out of the room and, therefore, he had to leave the room leaving the lady accused to the male officials of IB. He is, thus, liable for dereliction and abrogation of legal duties.

On 11 November 1994, Mariam Rasheeda disclosed about her contacts with accused Sasikumaran and Chandrasekhar. Inspector Vijayan took no steps to question immediately either Sasikumaran or Chandrasekhar and to confront them with Mariam Rasheeda so as to bring out the truth, especially in the context of wide media coverage from 22 October 1994 alleging espionage activities.

The basis of his deduction that Mariam Rasheeda and Fauziyya Hassan had come to India for espionage purposes has not been brought out on record by him. During investigation, he did not collect any information about any particular espionage activity committed by the accused. Despite this, he preferred to lodge a report at Vanchiyoor Police Station on 13 November 1994 that Mariam Rasheeda and Fauziyya Hassan had committed activities prejudicial to the sovereignty and integrity of the state.

The main grounds mentioned in the FIR for allegation of espionage is that Mariam Rasheeda contacted Sasikumaran several times and that she had made lot of entries in her diary, which was seized by them. Verification of these telephone calls and a translation of the diary entries would have confirmed that they had nothing to do with ISRO or espionage. Without any verification, Vijayan asked in haste to lodge an FIR on allegations of